IN THE COURT OF [SESSIONS JUDGE / ADDITIONAL SESSIONS JUDGE], [PLACE] [or: IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH]

Bail Application No. ____ of 20__

MEMO OF PARTIES

[NAME OF APPLICANT], aged about [__] years, [son / daughter / wife of] [NAME OF FATHER / HUSBAND], resident of [FULL ADDRESS WITH PIN CODE] [presently confined in __ Jail], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Applicant / Accused

Versus

State of [PUNJAB / HARYANA / U.T. CHANDIGARH]

… Respondent

In: [FIR No. __ dated __, under Sections __ of the Bharatiya Nyaya Sanhita, 2023 (or the corresponding IPC sections for offences before 01.07.2024), Police Station __, District __]

APPLICATION UNDER SECTION 483 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 [SECTION 439 CrPC] FOR THE GRANT OF REGULAR BAIL TO THE APPLICANT

Respectfully showeth:

1. That the above-noted FIR was registered on the statement of [COMPLAINANT / INFORMANT] alleging that [BRIEF ALLEGATIONS AS PER FIR, neutrally stated].
2. That the applicant was arrested on [DATE] and has been in judicial custody since [DATE], i.e. for about [__] [days / months].
3. That the applicant has been falsely implicated. [STATE GROUNDS — e.g. role attributed, delay in lodging FIR, nature of evidence, recovery or no recovery, medical evidence, parity with co-accused already granted bail].
4. That the investigation is [complete and the final report under Section 193 BNSS was filed on __ / at the stage of __]. The trial is likely to take considerable time, and no useful purpose will be served by keeping the applicant in custody.
5. That the applicant has [no criminal antecedents / the following cases: __, with their status].
6. That the applicant is a permanent resident of [ADDRESS], has deep roots in society, and there is no likelihood of the applicant absconding or tampering with evidence or influencing witnesses.

7. That [no other bail application has been filed / a bail application was dismissed by __ on __, and the present application is filed on the changed circumstances stated above].
8. That the applicant undertakes to abide by all terms and conditions imposed by this Hon'ble Court, to join the trial, and to furnish adequate bail and surety bonds.
9. That the applicant’s precise alleged role is [FIR and prosecution account], while the material relied on against the applicant is [statements / recovery / medical / digital evidence]. The applicant’s answer, without inviting a full trial at this stage, is [specific supported circumstance].
10. That custody began on [date], the latest remand is dated [ ], investigation is [stage], and the police report was [filed / not filed] on [ ]. The witnesses examined and remaining are [numbers]; the next date and likely impediment to trial are [recorded facts].
11. That any recovery or interrogation still said to be required is [particulars]. Continued detention is opposed because [case-specific reason]; completion of investigation is not treated as a universal entitlement to bail.
12. That antecedents, earlier bail applications and orders, abscondence or proclamation proceedings are fully disclosed in [schedule]. [If parity is sought: identify the co-accused’s order, comparable role and material differences.]
13. That risks of flight, witness influence and repetition can be addressed by [verified residence, attendance undertaking, no-contact condition, passport or other proportionate condition]. Financial circumstances and ability to furnish surety are [particulars].
14. That [no special statutory restriction applies / Section 37 NDPS, Section 45 PMLA, Section 43D(5) UAPA or another restriction applies and is addressed by the following material: ___]. [For default bail: use a distinct time calculation, extension-order analysis and willingness to furnish bail rather than assume merits bail and default bail are identical.]
15. That [OPTIONAL: retain only after verifying the cited rule and these facts] the applicant’s [cooperation, custody duration and antecedent position] is supported by [records]. Applying the discretionary approach in Dataram Singh, the identified risks can be managed by [conditions]; the contrary prosecution material and any special bail restriction are answered by [specific reasons].

PRAYER

It is, therefore, respectfully prayed that the applicant may kindly be released on regular bail in the above-noted FIR, on such terms and conditions as this Hon'ble Court deems fit, in the interest of justice.

Place: [PLACE] Date: [DATE]

APPLICANT / ACCUSED

Gagandeep Goel, Adv. (Enrl. No. P/1983/2007)
Gagandeep Goel & Associates | Master Legal Work
(M) 987 220 6969, (E) masterlegalwork@gmail.com
Advocate for the Applicant

IN THE COURT OF [SESSIONS JUDGE / ADDITIONAL SESSIONS JUDGE], [PLACE] [or: IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH]

Bail Application No. ____ of 20__

[NAME OF APPLICANT], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Applicant

Versus

State of [STATE / U.T.]

… State

AFFIDAVIT

Affidavit of [NAME OF DEPONENT], [S/o / D/o / W/o] [NAME], aged about [__] years, resident of [FULL ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER].

I, the above-named deponent, do hereby solemnly affirm and declare as under:

1. That I am competent to swear this affidavit. The accompanying [suit / petition / application] was drafted by counsel on my instructions, read over and explained to me in [LANGUAGE], and is adopted as part of this affidavit. Its facts are true to my knowledge or identified records; legal submissions rest on advice believed true.
2. That [no same or similar proceeding on this cause has been filed / all prior and pending proceedings, outcomes and orders are disclosed here: ___]. Nothing material is concealed.

DEPONENT

VERIFICATION

Verified at [PLACE] on [DATE] that paragraphs 1 and 2 above are true and correct to my knowledge and identified records, with legal submissions based on advice believed true. Nothing material has been concealed.

DEPONENT

Gagandeep Goel, Adv. (Enrl. No. P/1983/2007)
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Advocate for the Applicant

PREPARATION AND JUDGMENT APPLICATION

MODEL FOR GENERAL REFERENCE ONLY. NOT LEGAL ADVICE. These preparation notes are not part of the document to be signed or filed.

Model format for general reference only. Not legal advice. Adapt to the facts and the court's current rules. Source: masterlegalwork.com

Layout revised 17 October 2026 in the MLW house style: Legal paper, Arial 13, justified text and separate preparation notes. This is a model, not a prescribed court form. Check the current registry and e-filing requirements; mandatory court directions prevail. Use only identity particulars lawfully required by the forum and apply any required masking.

Updated 11 October 2026. Complete every material fact, retain only supported alternatives, and renumber before filing. These notes support professional adaptation; they do not supply missing evidence or guarantee relief.

Filing and relief checks. Select Section 480 or 483 BNSS according to the court, or the saved CrPC provision under Section 531 BNSS. Annex FIR, custody/remand record and earlier bail orders. State interim relief separately and disclose every earlier application.

Fact-specific authority. Dataram Singh v. State of Uttar Pradesh, (2018) 3 SCC 22; judgment dated 6 February 2018, paras 2–7. Use the applicant’s cooperation, custody and manageable risks to support judicial discretion. The decision does not mandate bail in every case or displace special statutory restrictions. Read the judgment

Source: https://indiankanoon.org/doc/122663958/

Before relying on any authority, compare the material facts, procedural stage, statutory version and precise relief; check subsequent treatment and applicable local practice. Keep the authority note separate from the signed pleading. For criminal procedure, determine Section 531 BNSS savings rather than select the code solely from the alleged offence date.

Note: Before the High Court, an affidavit, a custody certificate and the list of previous bail applications are usually required. Before a Magistrate, regular bail is sought under Section 480 BNSS [Section 437 CrPC].

Note: To be sworn before an Oath Commissioner / Notary Public and stamped as required by the applicable rules.